



CHAPTER 29.

An Act to give effect to an International Convention for the Protection of Industrial Property and to amend the provisions of the Patents and Designs Acts, 1907 to 1932, relating to matters affected by the said Convention; and to give effect to an International Agreement regarding false indications of origin on goods and to amend the provisions of the Merchandise Marks Acts, 1887 to 1926, relating to matters affected by the said Agreement. A.D. 1938.

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[26th May 1938.]

WHEREAS a revised international convention for the protection of industrial property and a revised international agreement regarding false indications of origin on goods were signed on behalf of His Majesty at London on the second day of June nineteen hundred and thirty-four :

And whereas it is expedient to give effect to the said convention and amend the provisions of the Patents and Designs Act, 1907, as amended by the Patents and Designs Act, 1914, the Patents and Designs Act, 1919, the Patents and Designs (Convention) Act, 1928 and the Patents and Designs Act, 1932 (which first-mentioned Act as so amended is hereinafter referred to as "the Patents and Designs Act"), relating to matters affected by the said convention :

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And whereas it is expedient to give effect to the said agreement and amend the provisions of the Merchandise Marks Acts, 1887 to 1926, relating to matters affected by the said agreement :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Amendments relating to Patents.

Mention of
inventor
as such in
patent.

1. After section eleven of the Patents and Designs Act, there shall be inserted the following section :—

“ 11A.—(1) The inventor of the whole of an invention or of a substantial part thereof shall, in accordance with and subject to the provisions of this section, be entitled to be mentioned as such inventor as provided by subsection (8) of this section.

For the purposes of this section—

(a) the actual deviser of an invention or a part of an invention shall be deemed to be the inventor thereof, notwithstanding that any other person is for any of the other purposes of this Act treated as the true and first inventor thereof;

(b) no person shall be deemed to be the inventor of an invention or a part of an invention by reason only of the importation thereof by him.

(2) If it is desired by the sole applicant for a patent, or by all the applicants, that any person shall be mentioned as aforesaid, a request in that behalf may be made in the prescribed manner by all the persons concerned (including the person alleged to be the inventor).

(3) If any person (other than a person in respect of whom a request in relation to the application in question has been made under the last foregoing subsection) desires to be mentioned as aforesaid, he may make a claim in the prescribed manner in that behalf.

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(4) No request or claim under the foregoing provisions of this section shall be entertained if it appears to the comptroller that the request or claim is based upon facts which, if proved in the case of an opposition under the provisions of paragraph (a) of subsection (1) of section eleven of this Act by the person in respect of or by whom the request or claim is made (in this section referred to as "the claimant"), would have entitled him to relief under that section.

(5) A request or claim under the foregoing provisions of this section must be made not later than two months after the date of the advertisement of the acceptance of the complete specification, or within such further period (not exceeding one month) as the comptroller may, on an application made to him in that behalf and subject to payment of the prescribed fee, allow.

(6) Where a claim is made under subsection (3) of this section, the comptroller shall give notice of the claim to every applicant for the patent (not being the claimant) and to any other person whom the comptroller may consider to be interested.

(7) The comptroller shall, if required, hear a claimant and any person to whom notice of the claim has been given as aforesaid.

(8) If the comptroller is satisfied that a claimant is the inventor of the whole invention or a substantial part thereof, and that the application for the patent is a direct consequence of his being such inventor, the comptroller shall cause the claimant to be mentioned as such inventor in any patent granted in pursuance of the application, on the complete specification and in the register of patents.

(9) Any person who alleges that a claimant, mentioned as aforesaid, ought not to have been so mentioned may at any time apply to the comptroller in the prescribed manner for a certificate that the claimant ought not to have been so mentioned, and the comptroller may, after hearing, if required, any person whom he may consider to

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be interested, issue a certificate to that effect, and if he does so, he shall rectify the specification and the register accordingly.

(10) Any decision of the comptroller under this section shall be subject to appeal to the Appeal Tribunal, who shall, if required, hear any person who was entitled to be heard before the comptroller.

(11) The mention of a claimant as aforesaid shall not confer, or derogate from, any rights under the patent."

Term in
case of new
patents.

2.—(1) In subsection (1) of section seventeen of the Patents and Designs Act, for the words "sixteen years from its date" there shall be substituted the words "a term beginning on the date of the patent" and ending at the expiration of sixteen years from the date (to be entered in the register of patents) on which the specification accepted as a complete specification "is treated by the comptroller as having been left."

(2) This section shall not apply in the case of patents granted before the commencement of this Act.

No
revocation
until two
years after
first
compulsory
licence.

3. Paragraph (e) of subsection (3) of section twenty-seven of the Patents and Designs Act shall cease to have effect, and there shall be inserted, after subsection (6) of that section, the following subsection:—

"(6A) If an application is made under subsection (1) of this section in relation to a patent, and—

- (a) an order has already been made in relation to that patent under paragraph (b), (c) or (d) of subsection (3) of this section;
- (b) a period of not less than two years has elapsed between the date of that order and the date of the application; and
- (c) the comptroller is satisfied that the objects of this section cannot be attained by the exercise of any of the powers conferred by the said subsection (3);

the comptroller may order the patent to be revoked, either forthwith, or after such reasonable interval as may be specified in the order, unless in

the meantime such conditions as may be prescribed in the order with a view to attaining the objects of this section are fulfilled, and the comptroller may, on reasonable cause shown in any case, by subsequent order extend the interval so specified :

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Provided that the comptroller shall make no order for revocation which is at variance with any treaty, convention, arrangement or engagement applying to the United Kingdom and to any foreign country or part of His Majesty's dominions outside the United Kingdom."

4. After subsection (2) of section ninety-one of the Patents and Designs Act, there shall be inserted the following subsection :—

Construction of ss. (2) of s. 91 of Patents and Designs Act.

"(2A) Where all the rights of each of two or more applicants who have made applications for protection of inventions in any one Convention country have become vested in the same person, those applications shall, for the purposes of the last foregoing subsection, be deemed to have been made by the same applicant.";

and that section shall be deemed, as from the commencement of the Patents and Designs Act, 1932, to have had effect as if the said subsection (2A) had been therein contained as aforesaid.

5. After the subsection numbered (2A) directed by the last foregoing section to be inserted in section ninety-one of the Patents and Designs Act, there shall be inserted the following subsection :—

Elements of invention not formally claimed in Convention country.

"(2B) In determining for any of the purposes of this Act (and in particular, but without prejudice to the generality of the foregoing words, for the purposes of this section, of paragraph (e) of subsection (1) of section eleven of this Act, or of paragraph (l) of subsection (2) of section twenty-five of this Act) whether an invention described or claimed in a United Kingdom specification is the same as that for which protection has been applied for in a Convention country, regard shall be had to the disclosure contained in the whole of the documents put forward at the same time as,

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and in support of, the application in the Convention country, being documents of which copies have been left at the Patent Office within such time and in such manner as may be prescribed."

Appeal from
comp-
troller's
refusal of
application
under s. 91
of Patents
and Designs
Act.

6. After the subsection numbered (2B) directed by the last foregoing section to be inserted in section ninety-one of the Patents and Designs Act, there shall be inserted the following subsection :—

"(2C) Any refusal by the comptroller to accept an application for a patent, or to accept a specification, on the ground of non-compliance with any requirement of this section, shall be subject to appeal to the Appeal Tribunal."

Amendments relating to Patents, Designs and Trade Marks.

Repeal of
proviso (b) to
ss. (4) of
s. 91 of Patents
and Designs Act.

7. Proviso (b) to subsection (4) of section ninety-one of the Patents and Designs Act is hereby repealed.

Certain
applications
abroad
equivalent
to regular
national
applica-
tions.

8. At the end of section ninety-one of the Patents and Designs Act, there shall be inserted the following subsection :—

"(5) Where a person has applied for protection for any invention, design or trade mark by an application which—

(a) in accordance with the terms of a treaty subsisting between any two or more Convention countries, is equivalent to an application duly made in any one of those Convention countries, or

(b) in accordance with the law of any Convention country, is equivalent to an application duly made in that Convention country,

he shall be deemed for the purposes of this section to have applied in that Convention country."

Orders in
Council
as to
Convention
countries.

9. After section ninety-one of the Patents and Designs Act, there shall be inserted the following section :—

"91A.—(1) In this Act, the expression 'Convention country' means a country in the case of

which there is for the time being in force a declaration made by His Majesty by Order in Council, with a view to the fulfilment of a treaty, convention, arrangement or engagement, declaring that that country is a Convention country :

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Provided that a declaration may be made as aforesaid for the purposes either of all or of some (but not all) of the provisions of this Act, and a country in the case of which a declaration made for the purposes of some (but not all) of the provisions of this Act is in force shall be deemed to be a Convention country for the purposes of those provisions only.

(2) His Majesty may, further, by Order in Council direct that any of the Channel Islands, any colony, any British protectorate or protected state, or any territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty and is being exercised by His Majesty's Government in the United Kingdom, shall be deemed to be a Convention country for the purposes of all or any of the provisions of this Act; and an Order made under this subsection may direct that any such provision shall have effect, in relation to the territory in question, subject to such conditions or limitations, if any, as may be specified in the Order.

(3) For the purposes of subsection (1) of this section, every colony, protectorate, territory subject to the authority or under the suzerainty of another country, and territory in respect of which a mandate on behalf of the League of Nations is being exercised, shall be deemed to be a country in the case of which a declaration may be made under that subsection."

Amendment relating to Merchandise Marks.

10. Section five of the Merchandise Marks Act, 1887, (which relates, among other matters, to the application of a trade mark or trade description to goods by the use of the mark or description in a manner calculated to lead to the belief that the goods in connection with which it is used are designated or described by the mark or description)

Amendment of s. 5 of Merchandise Marks Act, 1887.
50 & 51 Vict. c. 28.

A.D. 1938. as amended by any subsequent enactment, shall have effect as if there were inserted after subsection (2) thereof the following subsection :—

“(2A) Goods delivered in pursuance of a request made by reference to a trade mark or trade description appearing in any sign, advertisement, invoice, wine list, business letter, business paper or other commercial communication, shall, for the purposes of paragraph (d) of subsection (1) of this section, be deemed to be goods in connection with which the trade mark or trade description is used.”

Miscellaneous and General.

Consequential
and minor
amendments
of the Patents
and Designs
Act.

11. The amendments specified in the second column of the Schedule to this Act, being consequential amendments and amendments relating to minor details, shall be made in the sections of the Patents and Designs Act specified in the first column of that Schedule.

Short title,
citation,
construc-
tion,
printing
and com-
mencement.

12.—(1) This Act may be cited as the Patents &c. (International Conventions) Act, 1938, and—

- (a) the Patents and Designs Acts, 1907 to 1932, and so much of this Act as relates to patents, designs or trade marks may be cited together as the Patents and Designs Acts, 1907 to 1938; and
- (b) the Merchandise Marks Acts, 1887 to 1926, and so much of this Act as relates to merchandise marks may be cited together as the Merchandise Marks Acts, 1887 to 1938.

(2) Except as provided by subsection (2) of section two of this Act, the provisions of this Act—

- (a) shall apply to patents in force at, as well as to patents granted after, the commencement of this Act;
- (b) shall apply to applications (for patents or for the registration of designs or of trade marks) made before, as well as to applications made after, the commencement of this Act.

(3) For the purpose of identifying references in this Act to subsections and paragraphs contained in the Patents and Designs Act, regard shall be had to consequential renumbering authorised by subsection (2) of

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section fourteen of the Patents and Designs Act, 1932, and carried into effect in copies of the Patents and Designs Act, 1907, printed on behalf of His Majesty's printer in accordance with that enactment.

(4) A copy of the Patents and Designs Act, 1907, with the amendments effected by the Patents and Designs Act, 1914, the Patents and Designs Act, 1919, the Patents and Designs (Convention) Act, 1928, the Patents and Designs Act, 1932 and this Act, shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print copies of the Patents and Designs Act, 1907 in accordance with the copy so certified.

(5) Any reference, in an Act passed before this Act, to an enactment that is the subject of an amendment effected by a Patents and Designs Act shall, unless the contrary intention appears, be construed as including a reference to that enactment as so amended.

In this subsection, the expression "a Patents and Designs Act" means—

- (a) so much of this Act as relates to patents, designs or trade marks;
- (b) any previous Act that may be cited with the Patents and Designs Act, 1907.

(6) Any reference, in an Act passed before this Act, to an enactment that is the subject of an amendment effected by a Merchandise Marks Act shall, unless the contrary intention appears, be construed as including a reference to that enactment as so amended.

In this subsection, the expression "a Merchandise Marks Act" means—

- (a) so much of this Act as relates to merchandise marks;
- (b) any previous Act that may be cited with the Merchandise Marks Act, 1887.

(7) This Act shall come into operation on such date as His Majesty may by Order in Council appoint.

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SCHEDULE.

Section 11.

CONSEQUENTIAL AND MINOR AMENDMENTS OF
PATENTS AND DESIGNS ACT.

Section amended.

Amendment.

- Eight A - - In paragraphs (a) and (b) the word "foregoing" shall be omitted.
- Eleven - - In paragraph (e) of subsection (1), for the words from "other than that for which protection has been applied for" to "in that interval" there shall be substituted the words "other than that for which protection has been applied for in the Convention country (regard being had to the provisions of subsection (2B) of that section), and that such other invention either—
- " (i) forms the subject of an application made by the opponent for a patent which, if granted, would bear a date in the interval between the leaving of the application in the Convention country and the date of the application in the United Kingdom, or
- " (ii) has been made available to the public by publication in any document published in the United Kingdom in that interval".
- Twelve - - In proviso (b) to subsection (4), after the words "opposition to the grant of the patent" there shall be inserted the words "or by a request or claim under section eleven A of this Act", and for the words "either of the two last-mentioned cases" there shall be substituted the words "any other such case as aforesaid".
- Twenty-five - At the beginning of paragraph (b) of subsection (2), there shall be inserted the words "subject to the provisions of section ninety-one of this Act".
- In paragraph (l) of the said subsection (2), for the words "is not the same as that for which protection has been applied for in the foreign state, or part of His Majesty's

Section amended.	Amendment.	A.D. 1938.
Twenty-five— <i>cont.</i>	“ dominions outside the United Kingdom ” there shall be substituted the words “ is “ not the same as that for which protection “ has been applied for in the Convention “ country (regard being had to the provisions of subsection (2B) of that “ section) ”.	
Twenty-seven	- In subsection (3), paragraph (e) (including the proviso thereto) shall be omitted.	
Forty-eight	- In subsection (1), for the words “ a foreign vessel ” there shall be substituted the words “ a Convention vessel ”, and for the words “ a foreign aircraft or land vehicle ” there shall be substituted the words “ a Convention aircraft or land vehicle ”. For subsection (2) there shall be substituted the following subsection :— “ (2) In this section, the expression ‘ Convention vessel ’ means a vessel of a Convention country, and the expressions ‘ Convention aircraft ’ and ‘ Convention land vehicle ’ have corresponding meanings.” Subsection (4) shall be omitted.	
Eighty-two	- After the word “ Act,” where that word first occurs, there shall be inserted the words “ or by the Trade Marks Act, 1938 ”; for the words “ under this Act,” where those words first occur, there shall be substituted the word “ thereunder ”; and after the words “ under this Act,” where those words last occur, there shall be inserted the words “ or under the Trade Marks Act, 1938, as the case may be ”.	
Ninety-one	- In subsection (1), the words “ If His Majesty “ is pleased to make any arrangement “ with the government of any foreign “ state for mutual protection of inventions, “ or designs, or trade marks, then ” shall be omitted; for the words “ in that state ” there shall be substituted the words “ in a Convention country ”; and for the words “ in the foreign state ”, in both places where they occur, there shall be substituted the words “ in the Convention country ”.	

A.D. 1938. Section amended.

Amendment.

Ninety-one—*cont.* In the said subsection (1), for the word “dated”, in paragraph (a) of the proviso, there shall be substituted the word “made”.

In subsection (2), for the words from the beginning of the subsection to the words “a single patent thereon” there shall be substituted the words “Where the same applicant has made two or more applications for protection of inventions in any one Convention country, then, if—

“ (a) separate applications are made at the same time within twelve months from the earliest of the applications in the Convention country, one in respect of each of the applications in the Convention country, accompanied by a single complete specification; and

“ (b) the comptroller, or on appeal the Appeal Tribunal, is of opinion that the whole of the inventions in respect of which the applications in the Convention country were made, or so much of those inventions as is comprised in that single complete specification, is such as to constitute a single invention and may properly be included in one patent;

“ the comptroller may accept that single complete specification and grant a single patent thereon, or (on appeal) the Appeal Tribunal may direct such acceptance and grant as aforesaid.”

In the said subsection (2), for the words “foreign applications”, in both places where they occur, there shall be substituted the words “applications in the Convention country”.

In subsection (4), for the words “Provided that—

(a) In the case of patents the application ”

there shall be substituted the words “Provided that, in the case of patents, the application ”.

Section amended.	Amendment.	A.D. 1938.
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Ninety-one— <i>cont.</i>	In the said subsection (4), for the words “foreign state”, in both places where they occur, there shall be substituted the words “Convention country”.	
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In the said subsection (4), the words from
“and (b) In the case of trade marks” to
the end of the subsection shall be omitted.

Subsections (5) and (6) shall be omitted.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament